

Ram Suhawan v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 19 April 2024 · 2024:AHC-LKO:30646-DB · WRIT - C No. 3526 of 2024 · **Writ disposed; dues dispute sent to Executive Engineer under paragraph 6.5.**

HEADNOTE

A writ against a recovery citation and demand of Rs. 6,23,744 for alleged electricity theft was disposed of. The Court declined to try whether licensee staff took money and energised a flour mill without a meter, and directed the petitioner to apply to the Executive Engineer / Prescribed Authority under paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Suhawan, who runs a flour mill at Kaiserganj, Bahraich, says that in September 2023 he paid the Junior Engineer and Lineman of M.V.V.N.L. while applying for a commercial connection. No meter was installed, but the line was activated. On inspection the licensee alleged theft and demanded Rs. 6,23,744 by a recovery certificate, a citation dated 15 March 2024 under Rule 141(3) of the U.P. Revenue Code, 2006, and demand notice no. 3886. His Section 156(3) Cr.P.C. complaint against those employees had not produced an FIR.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disputed electricity dues relegated to the Executive Engineer

HOLDING

Where a demand for electricity dues turns on disputed facts — here, that licensee staff took money for a commercial connection, activated the line without a meter, and then raised a theft recovery — the High Court will not try those facts in writ. The consumer must apply to the Executive Engineer / Prescribed Authority under paragraph 6.5 of the Supply Code, 2005. ¶ 1-2

PRINCIPLE TAGS

article-226-alternate-remedy-up-supply-code-6.5 The challenge to the recovery citation and demand notice was not tried on merits; the petition was disposed of so the petitioner could move the Executive Engineer under paragraph 6.5. ¶ 1-2

billing-dispute-question-of-fact-executive-engineer-clause-6.5 Whether staff took money and energised the mill without a meter, and whether the theft demand of Rs. 6,23,744 was justified, were left as disputed facts for the Executive Engineer under paragraph 6.5. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ALLEGED THEFT ASSESSMENT AND THE RECOVERY OF RS. 6,23,744
Left to the Executive Engineer on an application under paragraph 6.5. ¶ 1-2

NOT DECIDED — WHETHER THE JUNIOR ENGINEER AND LINEMAN TOOK MONEY AND FAILED TO INSTALL A METER

Treated as a disputed question of fact. The pending Section 156(3) Cr.P.C. complaint was not decided. ¶ 1-2

